

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 3552

By: Maynard of the House

and

Bullard of the Senate

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10 COMMITTEE SUBSTITUTE

11 An Act relating to children; authorizing childcare
12 providers to charge differential; prohibiting the
13 Department of Human Services from penalizing or
14 taking adverse action against providers; requiring
15 providers to apply differential uniformly; directing
16 the Department to promulgate rules; providing for
17 codification; and providing an effective date.

18 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

19 SECTION 1. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 431 of Title 10, unless there is
21 created a duplication in numbering, reads as follows:

22 A. Upon approval by the Administration for Children and
23 Families, a licensed or permitted childcare provider serving a child
24 eligible for the Department of Human Services' Child Care Subsidy

1 Program may charge the child's parent or legal guardian the
2 difference between:

3 1. The Department's subsidy reimbursement rate applicable to
4 the child; and

5 2. The provider's standard private tuition rate for the same
6 age group and schedule.

7 B. The Department shall not:

8 1. Prohibit, restrict, or penalize a provider for charging a
9 differential authorized pursuant to this act; or

10 2. Take adverse action against a provider, including, but not
11 limited to, disqualification, enhanced monitoring, subsidy
12 enrollment restrictions, or corrective action, solely due to the
13 provider charging a differential pursuant to this act.

14 C. Providers who charge a differential shall apply the
15 differential uniformly to all similarly situated families.

16 D. The Department shall promulgate rules, update subsidy
17 agreements, and provide guidance documents to comply with the
18 provisions of this act.

19 SECTION 2. This act shall become effective November 1, 2026.
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21 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
22 OVERSIGHT, dated 03/05/2026 - DO PASS, As Amended.
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